

Vijay Mohanlal Makhija And Anr vs The State Of Maharashtra And Anr on 11 November, 2022

Bench: Revati Mohite Dere, R. N. Laddha

912.WPST 17946-20

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY

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CRIMINAL APPELLATE JURISDICTION
CRIMINAL WRIT PETITION (ST) NO. 17946 OF 2022

Vijay Mohanlal Makhija & Anr	...Petitioners
Versus	
The State of Maharashtra & Anr	...Respondents

Mr.Raviraj Gamare for the Petitioners.

Ms. M.H.Mhatre, A.P.P for the Respondent-State.

CORAM : REVATI MOHITE DERE &
R. N. LADDHA, JJ.

DATE : 11th NOVEMBER, 2022 P.C. :

1. Heard learned Counsel for the petitioners.

2. Learned Counsel for the petitioners submits that the matrimonial dispute was amicably settled between the applicant No.1's son - Dhiraj Vijay Makhija and the respondent No.2. He submits that pursuant to the settlement, a petition was filed seeking

912.WPST 17946-2022.doc divorce by mutual consent under Section 13(B) of the Hindu Marriage Act.

3. Learned Counsel relied on paragraph 8 of the said petition evidencing payment of Rs.22,00,000/- by way of permanent alimony past, present and future to the respondent No.2. Learned Counsel submits that pursuant to the said petition, the learned Civil Judge, Senior Division, Kalyan, was pleased to allow the said petition and as such, dissolved the marriage of the parties i.e. Dhiraj Vijay Makhija and the respondent No.2 vide Judgment and Order dated 21 st June, 2017. Learned Counsel submits that in para 4 of the said Judgment and Order, the learned Judge has recorded that the respondent No.2 has received a sum of Rs.22,00,000/- and that parties have agreed to withdraw all the criminal and civil cases filed by them against each other and / or their family members. He submits that despite the same, the respondent No.2 is not coming forward for giving her consent for quashing of the said complaint.

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4. Issue notice to the respondents returnable on 20th December, 2022. Learned APP waives notice on behalf of the Respondent No.1-State. In addition to Court notice, learned Counsel for the petitioner to serve the respondent No.2, by private notice and file affidavit of service before the next date.

5. Notice to indicate, that an endeavour shall be made to dispose of the aforesaid petition, at the stage of admission.

6. In the meantime, till the next date, the proceedings before the trial Court i.e. pending before the learned Metropolitan Magistrate, Ulhasnagar, being RCC No. 261 of 2015, is stayed.

R. N. LADDHA, J.

REVATI MOHITE DERE, J.